
Appeal Decision

Site visit made on 28 July 2026

by **A Wright BSc (Hons) MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 4th September 2026

Appeal Ref: 6010313

Branford Wells, Brickhouse Lane, Newchapel, Surrey RH7 6HY

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Central Projects Ltd against the decision of Tandridge District Council.
 - The application Ref is TA/2025/1413.
 - The development proposed is conversion of agricultural building to form five dwellings with associated parking and landscaping.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. The address in the banner heading above is taken from the application form, although I note that the appeal form and decision notice refer to the address as '1-5 South View Barns, Brickhouse Lane, Newchapel, Lingfield, Surrey RH7 6HY'.
3. The appellant submitted revised proposed floor plans and sections with the appeal documents which show the removal of the flat ceilings over the bedrooms, removal of cupboards and relocation of loft hatches. As these minor amendments are interior to the building and would not alter the amount of accommodation proposed, my consideration of the revised plans would not cause procedural unfairness or prejudice to parties.
4. Significant work to the building and site has already been carried out following the issuing of a lawful development certificate for the proposed change of use of the barns to five dwellings in 2021. Nevertheless, my consideration of the appeal is based on the description of development and the proposals set out in the original and, where relevant, revised proposed plans.
5. A new National Planning Policy Framework (the Framework) was published on 17 August 2026. As this could affect the issues and matters in this case, the Council and the appellant were invited to make further comments but no responses were received. My decision reflects the latest version of the Framework.

Main Issues

6. The main issues in this appeal are:
 - whether the appeal site is grey belt land and whether the proposal would be inappropriate development in the Green Belt, having regard to the Framework and relevant development plan policies;

- the effect of the proposal on the openness of the Green Belt;
- the effect of the proposed scheme on the setting of the nearby Branford Wells grade II listed building;
- the effect of the proposal on the character and appearance of the area;
- whether the proposal would provide acceptable living conditions for future occupants, with particular regard to the provision of amenity space; and
- whether any harm by reason of inappropriateness, and any other harm, would be clearly outweighed by other considerations, so as to amount to the very special circumstances required to justify the proposal.

Reasons

Grey belt and inappropriate development

7. The appeal site lies in the Green Belt identified in Policy DP10 of the Tandridge Local Plan Part 2 Detailed Policies 2014 (DP). Policy DP13 of the DP lists various types of development which are not inappropriate in the Green Belt. Owing to national policy changes, these differ to the exceptions listed in the Framework.
8. Policy GB7 of the Framework list the types of development that are not inappropriate in the Green Belt. This includes the reuse of an existing building, provided that the existing building is of permanent and substantial construction, is lawful in planning terms, and any extension will not result in a disproportionate increase in size compared to the original building (Policy GB7(1)(b)). It also includes development which would utilise grey belt land where it would meet several criteria (Policy GB7(1)(g)).
9. The proposal would reuse an existing building, and the parties do not dispute that it is of permanent and substantial construction. It is not proposed to increase the size of the building. Therefore, the proposal would meet the exception in Policy GB7(1)(b) of the Framework.
10. The definition of grey belt in the Framework includes land that does not strongly contribute to several Green Belt purposes. There is no dispute that the land does not strongly contribute to the purposes of checking the unrestricted sprawl of large built-up areas, preventing neighbouring towns merging into one another and preserving the setting and special character of historic towns. Therefore, the site meets the definition of grey belt.
11. The Council can only currently demonstrate a 1.97 year supply of housing land, significantly less than the five years referred to in the Framework, equating to a shortfall in excess of 3,000 homes. At an inquiry for an appeal at Nutfield¹, the Council agreed that this is persistent, chronic and extremely serious. As such, there is an evidenced unmet need for the type of development proposed under criterion (ii) of Policy GB7(1)(g).
12. Criterion (iii) of this policy requires development to be in a sustainable location, with particular reference to Policy TR3. Proposals which could generate a significant amount of movement, in the context of the area in which they would be

¹ APP/M3645/W/25/3374913

situated, should be sustainable. This means that the location should limit the need for travel, particularly by private car, and offer a genuine choice of transport modes for residents.

13. The proposed development would introduce five dwellings into an area with very few residential properties. Residents, their visitors, service and delivery vehicles associated with the proposed homes would generate a significant amount of movement in this context.
14. The appeal site is in a rural area away from settlements, facilities and bus services. It lies on Brickhouse Lane which is subject to a 40 mile per hour speed limit and lacks footways and streetlighting. Given its location and the nature of the road, I consider that future occupiers of the proposed dwellings would be heavily reliant on private vehicles to access services, and the location would not offer them a genuine choice of transport modes. Consequently, the proposal would not fall within the exception in Policy GB7(1)(g) of the Framework and would therefore be inappropriate development in the Green Belt.

Effect of the proposal on openness

15. As set out in the Framework, the objective of Green Belt policy is to prevent urban sprawl by keeping land permanently open. Openness is the counterpart of urban sprawl and often connotes the absence of development. It is an open textured term and can have both spatial and visual dimensions.
16. The appeal site comprises an agricultural building consisting of several barns which has subsequently been converted, an access driveway, and surrounding hardstanding and open land. Unlike an earlier proposal for use of the buildings for five dwellings², the current scheme does not include first floor accommodation.
17. Nevertheless, similar to the findings by the Inspector on the previous scheme, the proposal would subdivide the plot, providing residential curtilages. This would create inevitable pressure for associated domestic car parking and traffic, fences, outbuildings, garden furniture and other domestic paraphernalia associated with its use, resulting in a loss of spatial openness. This effect would be over a larger area than the previous proposal as the current site also includes undeveloped, open land adjoining the access driveway.
18. A lodge house and hedges provide some screening of the site from Brickhouse Lane. However, there are glimpsed views of it through the access driveway from where the proposed development would be visible. It would also be evident from neighbouring properties. Therefore, compared to the original agricultural building, the proposal would result in a demonstrable loss of openness, in both visual and spatial terms.

Listed building

19. The appeal site lies in the countryside and there are some traditional rural buildings nearby, including the grade II listed Branford Wells to the south which is a designated heritage asset. The historic and architectural significance of this listed building is derived from its architectural and historic value as a 16th century farmhouse which was sympathetically extended in the 20th century.

² Planning application ref: TA/2021/1967 and appeal ref: APP/M3645/W/22/3296968 'the earlier/previous proposal/scheme'

20. The Framework indicates that the significance of heritage assets can include any contribution made by their setting. It defines the setting of a heritage asset as the surroundings in which it is experienced. Branford Wells is experienced in the context of the traditional, rural open character, including the barns and land forming the appeal site which contribute to its significance.
21. The many glazed openings in the proposed converted building would give it a more modern, domestic appearance compared to the traditional agricultural appearance of the previous barns. Further, the creation of separate gardens subdivided by hedgerows would significantly enclose the space to the west of the building. In addition, the proposed parking bays and parked vehicles, patios, paths, cycle and bin stores and other domestic paraphernalia would result in substantial urbanisation of the rural environment. The domestic, enclosed, urban character of the proposed scheme would materially erode the rural setting, causing moderate harm to the significance of the listed building.
22. Policy DP20 of the Tandridge Local Plan Part 2 Detailed Policies 2014 (DP) states that only where the public benefits of the proposal significantly outweigh the harm to the designated heritage asset or its setting will exceptional planning consent be granted. These benefits will be proportional to the significance of the asset and to the level of harm proposed. This broadly aligns with Policy HE6 of the Framework where it states that for a development which would harm the significance of a designated heritage asset, the effect on the asset and its significance should be weighed against the public benefits of the proposal.
23. The appeal scheme would reuse a vacant building to provide five dwellings, create some social and economic benefits, and modestly improve accessibility to the building. However, given the relatively modest scale of the public benefits, these would not outweigh the harm to the significance of the listed building caused by the proposed development.
24. Consequently, I conclude that the proposal would fail to preserve the setting and thus the significance of the listed Branford Wells. This would be contrary to Policy DP20 of the DP where it seeks to preserve the historic interest, architectural character and settings of the District's heritage assets. It would also conflict with Policy HE6 of the Framework.

Character and appearance

25. The appeal site is within a rural area where fields predominate and there is only sporadic development, largely comprising farmhouses and associated buildings. There is a small lodge house adjacent to the site, with the traditional detached dwellings at Branford Wells and Branford Farm located on sizeable plots nearby. The barns and surrounding land on the appeal site contribute to the area's traditional, open countryside character.
26. The proposed cluster of five terraced dwellings would be at odds with the scattered pattern of detached houses in the locality. Further, as set out above, the proposed scheme would change a traditional agricultural building into one with a more modern, domestic appearance, enclose outside space and introduce substantial urban features into the external environment. Together, these would harm the rural open character of the area.

27. Consequently, I conclude that the proposal would harm the character and appearance of the area. This would be contrary to Policies CSP18 and CSP21 of the Tandridge District Core Strategy 2008 (CS) and Policy DP7 of the DP. Amongst other things, these seek to protect countryside character, including requiring new development to respect the distinctive character of the area in which it is located. It would also conflict with Policy DP3 of the Framework where it requires proposals to respond to their context so that they integrate with their surroundings.

Living conditions

28. The DP does not set out minimum requirements for amenity space. Nonetheless, amongst other things, Policy DP7 of the DP expects new development to be of a high quality design, with amenity and garden areas proportionate to the size of residential units and appropriate for the intended occupiers.
29. The proposed scheme would provide 2 x 2-bedroom units and 3 x 3-bedroom units which, although smaller than the earlier proposal, are likely to be used by families. The plans indicate a sizeable area of land to the north of plot 5, accessed from its living area, and I am satisfied that this would provide a sufficient, private garden area for the future occupants of this 3-bedroom property.
30. However, the only clearly defined amenity spaces for plots 1-4 would be in front of those dwellings. Given their location amongst the proposed access route and car parking areas, they would fail to provide private, suitable and attractive garden areas for future occupants of those properties.
31. There is a strip of land to the rear of the dwellings, but it is not shown as proposed private space. Even if it were, as several houses would have no rear doors, it is unclear how any private space in this location would be accessible to some future occupants. The appellant states that land adjacent to the access drive could be used for allotments or a community orchard, but this would not alleviate the need to provide garden areas appropriate for occupants of the proposed units.
32. Therefore, I conclude that the proposal would provide unacceptable living conditions for future occupants, with particular regard to the provision of amenity space. This would be contrary to Policy DP7 of the DP. It would also contravene Policy DP3 of the Framework where it seeks to create liveable places which will function well over the lifetime of the development.

Other Considerations

Benefits

33. Policies in the Framework seek to significantly boost the supply of homes and support development which makes efficient use of land. The proposal would contribute five dwellings to the supply of housing, making more effective use of the site. It would make some difference to addressing the substantial housing shortfall in Tandridge. There would also be some social and economic benefits, including the support future occupiers would give to local businesses and services. Further, it would promote the reuse of an existing vacant building and make modest improvements to the building including improved accessibility. It is also indicated that savings in carbon dioxide emissions could be achieved. Overall, I attribute moderate weight to these benefits.

Fallback Position

34. There is a lawful development certificate for the proposed change of use of the existing agricultural barns to five dwellinghouses following the expiry of 56 days in relation to the determination of prior approval reference 2021/353/NC³. There is a very real prospect that this development could take place.
35. The fallback scheme covers a much smaller area of land than the appeal proposal, with the plans not indicating any subdivision of the surrounding land or formal parking spaces. Thus, whilst it would provide the same number of similar sized units to those proposed, it would cause less harm to the openness of the Green Belt, significance of the listed building, and character and appearance of the area. Conversely, without any defined amenity spaces, it would provide worse living conditions for future occupiers than the appeal proposal. However, the fallback scheme would cause less harm overall and therefore I accord it limited weight.

Other Matters

36. The Council did not find harm or development plan conflict in relation to several other matters, including highways safety, parking provision, loss of the best and most versatile agricultural land, trees, biodiversity, neighbouring living conditions, archaeology, and contamination. Nevertheless, even if I were to agree with the Council on these points, the absence of harm would be a neutral matter which would not carry weight in favour of the scheme.

Whether there would be Very Special Circumstances

37. Policy DP10 of the DP outlines that inappropriate development which is, by definition, harmful to the Green Belt, will only be permitted where very special circumstances exist. This aligns with the approach set out in Policy GB6 of the Framework. There would also be harm to Green Belt openness and the character and appearance of the area, as well as a failure to preserve the significance of the listed Branford Wells and unacceptable living conditions for future occupants. Substantial weight should be given to the harm caused to the Green Belt. Very special circumstances will not exist unless the harm to the Green Belt and any other harm are clearly outweighed by other considerations.
38. I give modest weight to the provision of additional dwellings and social and economic benefits, and limited weight to the fallback position. However, the other considerations would not clearly outweigh the harm to the Green Belt by reason of inappropriateness and other harm. Consequently, the very special circumstances necessary to justify the proposed development do not exist. As such, it would be contrary to Policy DP10 of the DP and Policy GB6 of the Framework.

Conclusion

39. For the reasons given above, the proposal conflicts with the development plan and the material considerations, including the Framework and the very special circumstances test therein, do not indicate that the appeal should be decided other than in accordance with it. Therefore, the appeal should be dismissed.

A Wright INSPECTOR

³ Reference: 2021/1218